

2:00 PM

LINE 6

24-CIV-01127

E.T.I. INT'L. VS. KEVIN YIP, ET AL.

E.T.I. INT'L.
KEVIN YIP

BIN LI
MATTHEW D. MARCA

MOTION FOR PROTECTIVE ORDER

TENTATIVE RULING:

The Court orders the parties to APPEAR (Zoom appearances are allowed) on defendants Kevin Yip, Katy Yip, Sau Chun Ng, and Q.S. International Logistics, Inc.'s Motion for Protective Order.

This motion addresses the issue of whether plaintiff E.T.I. Int'l, Inc.'s designation of its alleged trade secrets is sufficient under Code of Civil Procedure section 2019.210.

The parties are to identify whether plaintiff's identification of trade secrets has been submitted in this motion. Exhibit B to the declaration of Matthew D. Marca in support of the protective order, which was not filed under seal, is a document entitled Trade Secrets Identification. Plaintiff, however, states in its reply brief (but not in any declaration) that it provided a separate trade secret designation, under protective order, with extensive information inside it. (Memo in Opp at p. 2 of the brief (counting the caption as page 1).) If Exhibit B to the Marca declaration is the identification, then defendants breached the protective order by filing in the court record a document marked confidential. Plaintiff does not raise any issue of breach of the protective order. No document has been lodged under seal with respect to this motion. Thus, it appears that the court does not have plaintiff's Trade Secret Identification. Without having the document, the court cannot determine if the descriptions are specific enough to satisfy the requirements of Code of Civil Procedure section 2019.210.

Further, defendants' motion lists categories of documents, but no party cites a case specifically dealing with whether that category of document can be considered a trade secret. For example, a customer list can be considered a trade secret. (*Courtesy Temporary Service, Inc. v. Camacho* (1990) 222 Cal.App.3d 1278, 1287.) The court found this case on its own, but it does not have the time or responsibility to search for cases for every category of documents listed in Exhibit B to the Marca declaration. Without such authority, the does not have a framework to analyze whether the information claimed by plaintiff to be trade secrets meet that definition. Defendants cite *Loop AI Labs Inc. v. Gatti* (N.D. Cal. 2016) 195 F.Supp.3d 1107 (*Loop AI*) to argue that general business information is not protected, but the designation in *Loop AI* was more general than some of the designation attached as Exhibit B to the Marca declaration. In *Loop AI*, the plaintiff designated:

“Business Development/Marketing Data” and “Financial/Operational Data” headings, Plaintiff identifies categories of information such as “actual and prospective investors and partners,” (¶ 34), “key contact information ... at a large Japanese technology company,” (¶ 36), “key contacts at a major telephone company,” (¶ 38), “confidential target partner, client, investor, supplier, employee, consultant, advisor information,” (¶ 42), and “key service providers” (¶ 46). See also Disclosure at ¶¶ 17, 37, 39, 45–47, 54.

(*Id.* at p. 1115.) Plaintiff, in contrast, provides identification of specific documents for Categories 1, 2, 3, and 5 although it is unclear if the descriptions under these categories are additional categories of documents or description of the main category. Category 4 appears general like the descriptions in *Loop AI* with no way for defendants to conduct any public searches to see if plaintiff made the documents public. However, since plaintiff stated it produced a more extensive trade secret designation, these designations appear immaterial.

Due to the sensitive nature of the court’s inquiry, it would seem that the list of trade secrets and the discussion about the documents should be done under seal.

2:00 PM

LINE 7

25-CIV-00410 DUJUAN GREEN VS. GENERAL MOTORS, LLC

DUJUAN GREEN
GENERAL MOTORS, LLC

DAVID N. BARRY
RYAN KAY

PLAINTIFF'S MOTION FOR ATTORNEYS' FEES AND COSTS PURSUANT TO CIVIL CODE SECTION 1794(d)

TENTATIVE RULING:

On the court's own motion, the court continues the motion to July 21, 2026 at 2:00 p.m.
